

Keshav Dev Tyagi v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 3 June 2016 · Writ-C No. 27784 of 2016 · **Writ dismissed; petitioners may apply under the 2005 Code.**

HEADNOTE

Mandamus will not issue to compel a new electricity connection where the U.P. Electricity Supply Code, 2005 is a complete Code. Clause 4.4 supplies the mechanism for a new connection and Clause 4.7 the time schedule. Petitioners who have not even moved the required application cannot obtain that relief in writ jurisdiction. Dismissal does not bar pursuit of the Code remedy.

FACTUAL SUMMARY

Keshav Dev Tyagi and four others approached the Allahabad High Court seeking a mandamus commanding the Executive Engineer, Electricity Distribution Division, Dakshinanchal Vidyut Vitran Nigam Ltd., Etmadpur, Agra, to award them an electricity connection. It was accepted that they had not moved the application required for a new connection under the U.P. Electricity Supply Code, 2005. Counsel for the fifth respondent was present.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

new-connection-application

HOLDING

The 2005 Code is a complete Code. A new connection is to be obtained under Clause 4.4, with the time schedule in Clause 4.7. Where the petitioners have not moved the required application, the High Court will not grant mandamus in writ jurisdiction; they remain free to pursue the Code remedy. ¶ 1